

The Seam That Holds While It Is Crossed: A Disjunctive-Transcendental Argument for a Conventional Conferring Seam

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Abstract

Some facts seem to resist being reduced to plain descriptive facts. Facts about what ought to be (normative facts) and facts about what experience is like (phenomenal facts) do not seem to follow from facts about how things merely are. Philosophers call this resistance the explanatory gap: the irreducibility of normative or phenomenal facts to purely descriptive ones. A long tradition moves this gap from one place to another. It stops treating the gap as a feature of a state of the world and starts treating it as a feature of inference, a limit on the moves thought can make from one concept to another.

This paper moves the gap to a different place. It treats the gap as a feature of the conferral-seam. A conferral is any act of sorting one thing from another, of designating something, or of meaning something. The conferral-seam is the event-form that every such act takes when it happens.

The argument for this move is a disjunctive-transcendental argument. A transcendental argument tries to show that something must hold because it is a necessary condition for thought or experience. A disjunctive argument has the form “either A or B.” The argument here has three structural features that set it apart from the class of arguments that Barry Stroud’s 1968 objection defeats.

First, its load-bearing premise is placed on the sceptic’s own enacted act of dissolving the framework, not on a fact the argument would have to establish on its own. Second, the conclusion is an identity of occurrence: the seam is the conferral-event under a second description, not a grounding relation that posits a second entity behind the first. Third, the argument’s form is disjunctive (conferral is occurring, or it has wholly ceased), not the conditional form that Stroud’s critique targets. Together these features close Stroud’s gap not by crossing it but by removing the step it was supposed to prevent.

The argument faces two hardest adversaries: Nāgārjuna’s *sūnyatā-sūnyatā* (the emptiness of emptiness) and Stroud’s transcendental deflation. It survives them on honest terms. The thin index (spatiotemporal location, a position in space and time) is forced at the conventional level (*saṃvṛti* in the Buddhist two-truths framework), and it is forced without circular reasoning by the token-reflexive route. The thick index (the perspectival from-here-as-this structure, the point of view from which sorting is done as this sorting and not its negation) is declared and defended in argument but never derived. The ultimate zero (*paramārtha*, the ultimate level) is conceded to Madhyamaka without qualification.

The verdict is **FORCES-CONVENTIONALLY-ONLY**. It is printed as a header, not buried as a qualification, because the conventional result is a genuine bounded contribution, and its honest size is its actual size. The paper also names the Candrakīrti-absorption risk, names the undischarged thick index as the live viva

front (the point a doctoral examination would press hardest), and concedes, without manufacturing a false symmetry, that the ultimate silence wins cleanly and costs nothing by way of conventional argument.

Keywords: transcendental argument, Stroud, Nāgārjuna, Madhyamaka, conferral, is/ought, conventional truth, token-reflexive, performative self-reference, explanatory gap

In plain terms

Picture a person at a desk sorting a pile of letters. For each letter she decides one thing: this one is local, that one is not. Every time she makes that decision and drops the letter in a tray, she performs a small act. She treats this letter as local and not as anything else. Call any act of this kind a conferral: an act of sorting one thing from another, of naming, of applying a rule. Meaning something and designating something are conferrals too.

Now imagine a claim about the whole world. The claim is that nothing stands on its own. Nothing carries its status by itself. A letter counts as local only because someone sorted it that way. A word means something only because a practice fixed it that way. Existence is handed to things, not produced by them from inside. Call the property of standing on one's own aseity. The claim is that nothing has aseity.

This claim runs into a problem about itself. If nothing stands on its own, then the sorting act cannot stand on its own either. So what gives the sorting its own status? There seem to be only bad answers. Maybe the sorting stands on its own after all, which breaks the claim. Maybe something else confers the sorting, and then something confers that, with no end. Or maybe the whole thing dissolves into nothing, and there is no result left to state.

A careful sceptic pushes the third answer. She says the sorting, pressed hard enough, dissolves to zero. Nothing remains. This is close to a real position in Buddhist philosophy, associated with Nāgārjuna, and this paper grants it at one level: at the deepest level, when all sorting stops, there is indeed nothing left.

Here is the reply the paper defends. While the sorting is actually going on, it is going on somewhere and at some moment. A sort that happens at no place and no time is not a sort at all. It would be the mere idea of sorting with no actual instance of it, and an idea with no instance does not occur. So wherever sorting is happening, some spot in space and time is occupied. Call that occupied spot a seam. The seam is not a separate thing hiding behind the sorting. It is the sorting itself, described a second way, as an event that takes up a place and a time.

Notice what the sceptic is doing when she says the sorting dissolves to nothing. She is sorting. She separates dissolved from not dissolved, deep truth from surface truth, empty from not empty. Her own denial is itself an act of the very kind she says dissolves. So she cannot arrive at zero while she is still arguing, because arguing is sorting, and sorting occupies a spot. Zero is reached only when the sorting stops, not by digging under it.

The paper is careful about how much this shows. It shows that the sorting takes up a place and a time. Call that the thin part of the claim. It does not show that there is a genuine point of view inside the act, a real "from here, as this and not that." Call that the thick part. The thin part is forced. The thick part is argued for but not proven. And at the deepest level, when sorting ceases, even the thin part is empty. The paper concedes that last point fully.

So the honest result is bounded. Wherever a conferral is happening, an occupied seam is happening, at the everyday level, for anyone who is arguing at all. There is no conferral from nowhere. The only road to

nothing is the end of conferral, which is the absence of the sorted world, not a floor beneath it.

1. The Setting: A Framework That Cannot Afford a Floor

Plainly: some views deny that anything stands on its own, and that denial then has to face itself, because the act of denying also has to stand on something.

There is a class of philosophical frameworks that begin by denying aseity across the board. Aseity means self-originating, self-standing existence: existing on one's own, with no support from anything else. On these frameworks, existence is conferred, not secreted. It is put into things from outside, not squeezed out of them from within. Status, authority, normative standing (standing with respect to what ought to be), and meaning are all put into things rather than given off by them.

The appeal of such frameworks is real. They dissolve a recurring illusion. The illusion is the thought that some item in the inventory of the world, pressed hard enough, will turn out to be the ground that needs no further ground. These frameworks also fit what the sciences have found: layers of dependence all the way down, with no layer that stands without the layer below it.

The pressure such frameworks face turns back on themselves. If nothing is self-standing, then the framework's own claim cannot be self-standing. The sharper form of the pressure is this. If existence is conferred, then the conferral itself must be accounted for. The conferral is the act of sorting this from not-this, of designating A rather than its negation, of applying a convention. That act must do one of three things. It must be self-standing, which refutes the framework. Or it must be itself conferred, which raises the question of what confers the conferring, with no end in sight. Or it must dissolve entirely to zero, leaving no positive result. So the framework either posits a covert aseity, or starts an infinite regress, or ends with nothing to say.

This is not a marginal objection. It is the objection Nāgārjuna anticipated and addressed in the *Vigrahavyāvartanī* (the "Dispeller of Disputes"). His reply denies that the emptiness-claim is itself a self-standing assertion. The image is a medicine that purges itself along with the illness. But notice the dialectical situation this creates. The no-aseity framework, once it takes this Madhyamaka move, concedes that at the ultimate level the dissolution reaches zero. Nothing persists. (Madhyamaka is the "Middle Way" school of Buddhist philosophy; the ultimate level is its name for how things stand when all conceptual designation ceases.) The question then becomes whether the framework has anything to say short of the ultimate. Does any result hold at the conventional level, while conferral is still occurring, before the silence that dissolves it?

The answer defended here is that something is forced, at the conventional level, as an event-form of every occurring conferral. The event-form is a non-zero occupied seam. This seam has *seity* and no *aseity*. Seity means ownerless, dependently-arisen structure: structure that is real while it occurs, but belongs to no self-standing owner and arises only in dependence on other things. The seam is not self-standing. The argument for its existence is disjunctive-transcendental in form, and it has a genuine structural innovation over the class of arguments that Stroud defeated in 1968.

2. The Argument: P1 Through C

Plainly: in five steps, any act of sorting takes up a place and a time, even the act of denying this does, there is no middle between sorting and having stopped, zero comes only by stopping, so wherever sorting happens an occupied seam happens.

2.1 P1: Conferral Is Occupation

Status: stipulated and contested. It is the single load-bearing premise. It is forced in its thin reading by non-circular argument, and it is declared in its thick reading.

Any act of conferral (sorting A from not-A, meaning, designating, applying a convention) is performed as this discrimination and not its negation, and it is indexed at a standpoint. To be indexed at a standpoint is to be tied to a position from which the act is done. An occurrence indexed at nothing is no occurrence at all.

The phrase “indexed at a standpoint” carries two readings, and they must be kept apart throughout the paper.

The **thin index** is spatiotemporal location. It is the claim that the conferral-event is a concrete particular sitting at a definite position in space and time. This reading has a non-circular defense, given in §4. It earns more than a restatement of *pratītyasamutpāda* (dependent origination, the Buddhist thesis that things arise only in dependence on other things). A conferral with no thin-index residue at all is incoherent at the conventional level. It would be a type occurring while no token of that type occurs. A type is a general pattern; a token is a single concrete instance of it. A type present with no token is a formal contradiction at the *saṃvṛti* level.

The **thick index** is a standpoint *from which* sorting is performed *as this discrimination and not its negation*. It is the point-of-view structure, the from-here of the act. It is the directedness that marks the act as this act and not its complement. (This directedness is what philosophers call intentional: aimed at one thing rather than another.) This reading is what P1’s strongest modal content would require, that is, its strongest claim about what must be the case, in order to force the disjunction in full. The thick index is declared, not derived. The step from “located at position L” to “sorts from L as this sorting” reads point-of-view structure off a plain physical description. That step is Barry Stroud’s gap reopened inside the predicate “conferral” itself [high confidence on this diagnosis; Stroud 1968, “Transcendental Arguments,” *Journal of Philosophy* 65: 241–256].

The argument below proceeds honestly. The thin index is the load-bearing item, established without circular reasoning. The thick index is pressed hard in argument but conceded as not discharged. The contribution is bounded to match.

2.2 P2: The Dissolution-to-Zero Is Itself a Conferral

Status: granted. It survives every adversary.

To assert, show, or even *intend* “the residue is zero” is to sort *empty* from *non-empty*, *ultimate* from *conventional*, *dissolved* from *undissolved*. The *Vigrahavyāvartanī*’s “I have no thesis” reply defuses one charge: the charge of asserting a self-standing *proposition*. It does not defuse a second charge: the charge of *performing a partition*, that is, an act of dividing one thing off from another. Even the self-purging medicine is administered, and administering is sorting.

This is the pivot on which the argument’s structural innovation turns. The Madhyamaka sceptic runs a *prasaṅga* against the view that a conferring seam persists. A *prasaṅga* is a reductio: an argument that draws out an unwelcome consequence from the opponent’s own position in order to make the opponent reject that position. To run it, she must *select* certain consequences as unwelcome, as consequences the interlocutor (the person she is arguing with) ought to reject. To display a consequence as unwelcome, she must make an evaluation: this consequence is damaging and that one is not, by the interlocutor’s own lights. That evaluative sorting is performed. It is an act of conferral, at minimum a thin-indexed one, even if it is not an assertion about the mind-independent world.

P2's status is high. Both of the hardest adversaries, the Madhyamika and the Stroudian deflationist, concede that an act of dissolution is performed. (The Madhyamika is a follower of Madhyamaka; the Stroudian deflationist is an opponent who, following Stroud, deflates the argument by denying that it reaches existence.) The dispute is over what the act *carries*, that is, whether it carries an index, not over whether it occurs. That concession is all P2 requires, and P2 requires only that [high].

2.3 P3: Exhaustive Disjunction

Status: valid, conditional on P1.

Take any region. Either conferral is occurring there (call this cell C), or conferral has wholly ceased there (call this cell Z). There is no third cell. Consider the apparent third option, "conferral with a zero residue," a sorting performed from no index while the sorting is going on. Under P1 this option is p and not- p at once, a statement together with its own denial. It is conferral occurring, which by P1 means an occurrence is tokened (an actual instance is present), which means a thin index is occupied. And it is zero residue, which means nothing is occupied. The two halves contradict each other. This is a formal contradiction at the conventional level, not merely an implausible case.

The Madhyamaka probes a further cell, call it C': dependently-arisen sorting with no occupied index. C' is contradictory *only if* P1's thin-index reading holds. The entire weight of the conditional rests here. The argument inherits P1's contestation exactly. P3 is as secure as P1 is, and no more.

2.4 P4: Zero Is Cessation, Not Ground

Status: granted. It is load-bearing in the decisive direction. No adversary dislodges it.

Cell Z, the total cessation of conferral, is reached only by conferral *stopping*. It is never reached by going underneath conferral. There is no vantage point that is both at zero and still conferring. The ultimate emptiness (*paramārtha*) is not a deeper stratum on which the conventional world rests. It is what remains when the conventional world, including all conferral, stops operating.

This premise does a great deal of work, and it does it without being contested. Both the Madhyamika and the Stroudian deflationist concede it. The Madhyamika wins at *paramārtha* not by finding a deeper ground but by *dissolving* everything, the conferring activity included. The deflationist who denies that physical events carry point-of-view structure does not claim there is a ground under the conferring. He simply denies that the conferring is real as conferring. Neither objector claims that zero is a stratum beneath the conventional. They claim that the conventional does not force what the argument says it forces.

P4's function is to convert the concession of the ultimate into a *license* for the conventional result. Because zero is cessation and not a ground, the conventional cannot borrow zero-ness. Wherever conferral is occurring, it is occurring from a non-zero location. The fact that the ultimate level offers no such location is not a refutation. It is the cessation of the subject matter itself.

2.5 C: Conclusion

Status: forced from P1 through P4, which is to say forced conditional on P1.

Wherever conferral occurs, a non-zero occupied seam occurs. The seam is the *form* of that conferral. It is identical to the conferral-event under a second description, not a ground beneath it. And the only route to zero is the cessation of conferral, which is the absence of the conferred world, not its foundation. So the dissolution of aseity cannot reach zero while any conferring is going on, including the conferring that performs the dissolution.

The seam that is forced has *seity*, ownerless dependently-arisen structure, and no *aseity*. It is not self-standing. It exists *while it is enacted*, and only then. Between conferrals, in cessation, there is zero. No floor persists under the world.

3. The Structural Innovation: Why This Is Not Stroud-Vulnerable in the Standard Way

Plainly: Stroud's classic objection says arguments of this kind show only that we must think X exists, never that X does; three features here keep that objection from finding a foothold, though they do not make the conclusion unconditional.

3.1 Stroud's Objection, Stated Fairly

Stroud's 1968 paper ["Transcendental Arguments," *Journal of Philosophy* 65: 241–256; high confidence] identified a structural gap in Kant's transcendental method as later used by neo-Kantians. (Kant's method tries to establish substantive conclusions by showing they are necessary conditions of experience; neo-Kantians are later philosophers who carried the method forward.) The argument form Stroud targeted runs like this: "X is a necessary condition of experience, or thought, or discourse; therefore X exists." Stroud's objection is that such an argument establishes, at best, that we must *think* there is an X. It does not establish that X *obtains*. There is a gap between conceptual necessity (what we must think) and objective existence (what is the case). At best these arguments deliver a "must think" conclusion. They deliver "exists" only by importing verificationism, the view that what we cannot in principle verify is meaningless, or some equivalent assumption aimed against the sceptic. Without that assumption the argument is invalid. With it the argument begs the question against the sceptic, that is, it assumes the very point in dispute.

This is a genuine and powerful objection. It has been refined, contested, and partly answered in the forty years since [Robert Stern, "Transcendental Arguments," *Stanford Encyclopedia of Philosophy*, rev. 2023, high confidence]. Its core point still stands as a real constraint: conceptual necessity does not by itself entail existence.

3.2 Feature One: The Premise Is Placed on the Opponent's Act

Stroud's critique targets arguments of the form "X is necessary for Y; therefore X exists." The weak point is the step from *necessary-for* to *exists*. The existence claim needs more than the necessity claim gives it.

The present argument removes this step. It places its load-bearing premise on the *enacted act* of the opponent who is carrying out the dissolution. The relevant existence, the act of partitioning, is not inferred from a concept. It is *already on the table*, granted by the opponent's own performance of the argument. The Madhyamika who asserts "the residue is zero" grants that she is asserting and sorting. The Stroudian who dissolves the conferring-event down to a physical substrate grants that he is performing an act of evaluation. P2 is not an inference about what must exist. It is a description of what the opponent is doing *right now*, which she has already conceded.

Stroud's objection has no gap to work in here, because no inference from thought to being is made. The being is conceded at the start.

3.3 Feature Two: The Conclusion Is an Identity of Occurrence

Standard transcendental arguments of the Kantian form conclude that *X exists*, or that *X is the case*. This is a claim about a second entity, the condition, over and above the starting datum, the experience or thought

in question. (A datum is the given fact the argument starts from.) Stroud's objection enters in the space between the datum and the further entity that is posited as its condition.

The present argument's conclusion, C, does not have this form. The seam is not posited as a further entity that the conferral-event requires. It *is* that event under a second description. "A conferring-event is occurring" and "a non-zero occupied seam is occurring" describe the same occurrence. They are related by identity, not by grounding or necessitation. (To ground or necessitate is to make one thing hold in virtue of another; identity is being the very same thing.) There is no second thing whose existence must be proved. The identity is not a deep metaphysical claim about hidden essence. It is the same move a physicist makes when she says that a lightning-event is an electrical-discharge-event: a second description of one occurrence, not an extra thing added to the world's inventory.

Stroud's objection has no gap to work in here, because no second entity is claimed. The conclusion is an identity, and identities do not posit new existents.

3.4 Feature Three: The Disjunctive Form

Stroud's critique targets arguments of the conditional form: "X is necessary for Y," or "without X, Y is impossible." The disjunctive form of P3 does not have this shape. The argument does not say "a seam is necessary for conferral to occur." It says: conferral is occurring (cell C), or it has wholly ceased (cell Z). Cell C *is* a seam occurring, by the identity of feature two. Cell Z is cessation. There is no third cell.

The conditional form invites a question: why must the necessary condition exist, given that the conditioned thing exists? The disjunctive form does not invite that question. The disjunction is *exhaustive* by construction, because cell C', conferral with zero residue, is ruled out as a formal contradiction under P1. So the question of whether C's seam "must exist" does not arise in the same way. Anyone who is conferring is *already in cell C*. The question is not whether the seam must exist given that conferring is occurring. The question is whether the act of conferring, already conceded, is a seam-event or a non-seam-event. The identity claim of feature two says it is the same occurrence described twice. The disjunction says there is no middle ground between the two cells.

3.5 What the Three Features Buy and Do Not Buy

These three features set the present argument apart from the general Stroud-vulnerable class. Neither hardest adversary disputes them. Both the Madhyamika and the Stroudian deflationist concede, under examination, that the *structural* innovation is real. What they contest is P1, and specifically whether P1 holds in its thick reading. That contestation of P1 is exactly what the argument names as its live condition.

Here is what the three features buy. The argument is not defeated by Stroud's 1968 objection in its standard form, because the gap Stroud identified, the gap from thought to being, does not appear anywhere in the argument's chain of derivation. Here is what they do not buy. They do not buy unconditional force for C. C is forced conditional on P1, and P1's thick reading is not discharged. The argument's claim to have escaped Stroud is not a claim to have crossed Stroud's gap. It is a claim to have removed the step that the gap was supposed to prevent.

4. The Token-Reflexive Defense: Earning the Thin Index Non-Circularly

Plainly: the claim that a sorting occupies a place and time is defended without assuming it, by using the general fact that any actual event is a single instance that must sit somewhere.

4.1 What Non-Circularity Requires Here

The circularity charge against transcendental arguments runs like this: the argument assumes its conclusion inside its premises. For P1's thin reading, the charge would be that the argument assumes conferral-events occupy positions in space and time, in order to conclude that conferral-events occupy positions in space and time. To answer the charge, the defense must derive the thin index from premises the opponent already grants on *independent* grounds. Those grounds must make no mention of conferral, standpoints, or discrimination. The derivation runs as follows.

4.2 Steps One Through Four

Step one. C.S. Peirce's type/token distinction (introduced 1906, formulated in the Collected Papers; reported at high confidence via Liebesman, "Types and Tokens," *Stanford Encyclopedia of Philosophy*, first published 2026) sets the baseline. A type "does not exist; it only determines things that do exist." A token is "a single event which happens once and whose identity is limited to that one happening... significant only as occurring just when and where it does." A type with no token is an uninstantiated abstract pattern; it does not occur. This is not a special claim about conferral. It is the general metaphysics of occurrence, that is, the general account of what it takes for anything to happen.

Step two. What makes two exactly similar token events count as two rather than one? (To settle this is to individuate them, to fix what makes them numerically distinct.) The standard accounts surveyed in the SEP entry on Tropes (Maurin, "Tropes," *Stanford Encyclopedia of Philosophy*, rev. 2023; high confidence) divide into two camps. A trope is a particular instance of a property: this redness here, rather than redness in general. *Spatiotemporal individuation* (SI) holds that for any tropes exactly resembling each other, they are numerically distinct if and only if they are at non-zero distance in space and time (Campbell 1990; Lowe 1998; Schaffer 2001). *Primitivist individuation* (PI) holds that numerical distinctness is basic and needs no further explanation (Ehring 2011; Campbell 1990). PI does not deny that tokens occupy positions. It denies only that their positions *explain* their distinctness. On either account, a token that occupied no position at all in space and time would be indistinguishable from an uninstantiated type. And on Kim's property-exemplification view of events (Kim 1966, 1969; cited throughout Varzi, "Events," *Stanford Encyclopedia of Philosophy*, rev. 2025; high confidence on attribution), the time-constituent is a *constitutive component* of the event's structure, not a label stuck on afterward.

Step three. Apply this to conferral. If a conferral occurs, that is, if the sorting act *takes place*, it takes place as a token event. In Peirce's terms, this conferral is significant as *this* conferral because it occurs just when and where it does. A conferral with zero positional residue would have no identity conditions to mark it off as a token, either from a qualitatively identical conferral or from the uninstantiated type "conferral in general." Uninstantiated types do not occur. So "conferral occurring, at no position" is equivalent to "a type occurring while no token of that type occurs," a formal contradiction at the conventional level.

Step four. The performative regress. The Prāsaṅgika who asserts "conferral occurs ownerlessly, with zero index residue" is herself performing a conferral act. She is discriminating the Madhyamaka position from alternatives that posit *svabhāva* (self-standing intrinsic nature), at a moment, in a conversation, as *this* speaker. She grants that she is discriminating; the antecedent, the if-part, is conceded by her own act. By steps one through three, that assertion is a token event. Its being *this* assertion, numerically this one rather than a qualitatively identical assertion made yesterday, requires at minimum that it occupy a position. The denier cannot perform the denial without instantiating a token, and instantiating a token requires being located. If she then denies that *that* denial is a located token, she performs one more token act of denial. The regress closes the loop: every act of denying the thin index is itself a thin-indexed act, at the conventional level.

4.3 Why This Is Non-Circular, for the Thin Index Only

The chain of derivation is this. An event *occurs*, as a conferral-token, which anyone who is arguing grants. It *is individuated* as this token. It *occupies a position* in space and time. It *occupies a thin index*. Each link is drawn from the general metaphysics of particulars, applied to all occurring events with no special bias toward conferral. Neither the Peircean type/token distinction nor spatiotemporal individuation mentions conferral, standpoints, or discrimination. The thin index falls out of what it is to be an occurring token. It does not fall out of a prior assumption about what conferral is. The non-circularity badge attaches to the thin index alone. It does not transfer to anything in the thick index.

One scope qualifier matters. The performative regress is airtight against anyone who is *arguing*. Every interlocutor conducting the C/Z dialectic concedes that he confers. What the forcing does not deliver is a general proof that physical events, considered purely as physical, carry a conferral-index. That would require identifying a physical event as a conferral-token rather than as substrate dynamics (the underlying physical activity) at the same coordinate, and that is a step the deflationist refuses. The seam binds those who take part in discourse, which is exactly what the C/Z disjunction needs, and no more.

5. The Thick Index: Dialectical Pressure, Not Forcing

Plainly: the point-of-view part of the claim can be pressed hard on anyone who argues, but it cannot be proved, and at the ultimate level it, like everything else, is empty.

5.1 What the Thick Index Would Require and Why It Is Not Derived

The conventional thin-index forcing establishes that conferral, as a token, occupies a position in space and time. The *strongest* form of the C/Z disjunction would require more. It would require the thick index: the standpoint *from which* sorting is performed *as this discrimination and not its negation*, the from-here point-of-view structure, the directedness that marks the act as enacted-as-this-partition.

The move from “located at position L” to “sorts from L as this sorting” reads point-of-view structure off a physical description. This is Stroud’s gap reopened *inside the predicate “conferral”* itself. It is not a gap between conferral and some further entity. It is a gap inside what it would take for the conferral to be fully determinate in its indexing. The thick index is not derived here, at any level, the conventional included. Any argument that claims to derive it does one of two things. Either it imports *entelecheia* (Aristotle’s term for a thing’s realized inner actuality), or Husserlian act-structure (Husserl’s analysis of the inner structure of mental acts), or perspectival determinacy treated as a “real relational property,” and each of these is dissolved at the ultimate level by *śūnyatā-śūnyatā*. Or it reopens Stroud’s gap in a new spot. Neither move is made here.

A candidate who defends this argument at a viva (an oral doctoral examination) must hold this boundary firmly. The three structural innovations of §3 escape Stroud’s critique for the conclusion as stated. They do not license a conclusion stronger than P1 warrants, and P1 in its thick reading is not warranted.

5.2 The Burden-Shift and Its Honest Ceiling

The strongest dialectical move available is not to claim the thick index is proved. It is to raise the cost of dissolving the thick index to zero *while one is arguing*. The dissolutionist who presses the dissolution claim in discourse is performing an act of evaluation. He is selecting this-consequence-as-the-correct-characterization rather than its alternative. That evaluative discrimination is itself a sorting act. It is not a

first-order assertion about the world (a plain claim that such-and-such is the case), but it is a partition of the space of philosophical options. The Mādhyamika who runs a *prasaṅga* selects consequences as *unwelcome*, as reductios the interlocutor ought to reject. To display a consequence as unwelcome, she must evaluate: this-consequence-is-damaging and not that one, by the interlocutor's lights. That evaluative tracking is performed from a conventional interpretive standpoint *while she argues*.

This establishes that the argumentation-context *presupposes* the from-here structure, in this sense: any participant conducting the argument must *treat* his own acts as directed, as this-partition-and-not-that. But here is the boundary that must not be moved. Treating-as is not occupying. The presupposition is present as conventional performance for exactly as long as the argument is conducted, and no longer. It lapses the instant discourse lapses. The opponent can eliminate the thick index without pragmatic self-contradiction (without contradicting, by the very act of speaking, what he says) in two ways. He can concede thin location and deny perspectival structure, which is the deflationist's clean horn (one of two available options). Or he can exit to non-conceptual silence, which is the Prāsaṅgika's silence-exit. The self-contradiction bites only on denial of the thin index. So "forced" is reserved for the thin result. It is not used for the thick index.

5.3 The Candrakīrti-Absorption Risk Named

There is a specific and non-trivial risk that the present argument must name rather than paper over. Call it the absorption risk: the risk that the Madhyamaka position absorbs and dissolves the very tools the argument uses. Candrakīrti's Prāsaṅgika Madhyamaka, in the *Prasannapadā* (his commentary on the *Mūlamadhyamakakārikā*; moderate confidence on attribution, given no independent primary-text verification here), pressed the *vikalpa* point more sharply than Nāgārjuna's own *Viṅṇāṇavyāvartanī* does. *Vikalpa* is conceptual construction, the mind's activity of carving the world into concepts. On this line, *vikalpa* is itself the mechanism of error, and the conventional-truth framework is a provisional ladder, not a stable platform. Applied here, the worry is direct. The conventional forcing of the thin index is itself a conceptual construction. On Candrakīrti's account the conventional-truth framework has no stable floor. It is a web of designations that lean on one another, none of them fixed by the kind of token-individuation argument that Steps one through four provide. That token-individuation argument brings in a *substantial* notion of token-particularity (of what makes a token one definite particular), and a thoroughgoing Prāsaṅgika may deny it.

This is a live objection, not a merely formal one. The response available is to hold at *saṃvṛti*. The argument does not require token-particularity in any ultimate sense. It requires only that the Prāsaṅgika context of argument conventionally individuates its own moves as discrete performances. That is a very thin claim, and a conventionally available one. But the Candrakīrti objection presses further. It asks whether even this thin claim is covertly smuggling a *svabhāva*-committed notion of particularity into the conventional framework. The present paper does not have a worked-out response to the *Prasannapadā* on this point. The absorption risk is named, and left as a live viva front alongside the thick index.

5.4 The Ultimate Concession: Zero without Manufactured Symmetry

The Prāsaṅgika wins at the ultimate level. *Śūnyatā-śūnyatā*, the claim that emptiness is itself empty, dissolves occurrence, token, position, and perspectival character at the *paramārtha* level. Even "occurrence = tokening" and "tokening = spatiotemporal individuation" are *saṃvṛti* truths with no residue at the ultimate level. The thin index is empty at *paramārtha*. The thick index is not merely unearned there. It is dissolved, along with everything the conventional forcing uses to establish the thin index.

There is a temptation to manufacture a symmetry at the ultimate level, to claim that the occupation move "cannot be refuted there any more than it is proved there." This temptation must be declined. The honest picture is asymmetric. The Prāsaṅgika does not assert the dissolution as a *paramārtha* thesis from within

discourse, and she does not need to. The zero at *paramārtha* is not a competing claim that could win or lose an argument. It is what remains when conceptual designation ceases. She wins the ultimate not by a successful counter-thesis but by the ceasing of proliferation, the ceasing of the mind's spinning-out of concepts. At *paramārtha* the thick index does not have some protected standing as merely unproved. It was never earned there, and at *paramārtha* everything, the thin index included, is empty.

The cost to the dissertation is real. The cost to the *contribution* is bounded and not fatal. A conventional, discourse-scoped result is still a genuine result: the result that any act of conferral occurring in discourse instantiates a non-zero thin-indexed seam, by identity and not by grounding. The Mādhyamika gets *paramārtha*. The argument gets *saṃvṛti*. And the question of whether *saṃvṛti* is enough for the contribution has an answer. It is enough, provided the contribution is stated honestly at *saṃvṛti*, which it now is.

6. The Cogito-at-the-Act and Performative Self-Reference

Plainly: the move “denying X is itself doing X” has two famous ancestors, Descartes’s cogito read as an act and Apel and Habermas on self-refuting arguments, but this paper claims far less from it than they did.

6.1 The Lineage

P1 and the argument’s P2 move have a recognizable lineage, and the paper is clearer for naming it than for discovering it in secret. The structure of performative self-reference, the observation that the act of denying X presupposes X or enacts X, has two canonical ancestors in philosophy.

Descartes’s cogito, read as an act rather than a proposition. The traditional reading of “cogito ergo sum” (“I think, therefore I am”) treats it as an inference. A more defensible reading (Hintikka, “Cogito ergo sum: Inference or Performance?” 1962, *Philosophical Review* 71: 3–32; high confidence on existence and thesis) treats it as a performative, an utterance that does something by being said. The act of doubting instantiates a doubter. This is not because “there must be a doubter for there to be doubting” is a valid inference to existence. It is because the *act of doubting*, as an enactment, is itself the existence it was supposed to deny. The present argument’s P2 has the same structure, applied to the act of dissolving-to-zero. The act of performing a dissolution is itself an instance of the conferral it tries to dissolve.

Performative self-reference in Apel and Habermas. Karl-Otto Apel’s transcendental pragmatics (*Transformation of Philosophy*, 1973; *Towards a Transformation of Philosophy*, English 1980; moderate confidence on primary-text specifics) and Jürgen Habermas’s theory of communicative action (*The Theory of Communicative Action*, vol. 1, 1984; high confidence on thesis) each developed one observation: certain philosophical positions refute themselves at the level of the act of arguing, not at the level of the proposition argued. Apel’s “Letztbegründung,” or ultimate grounding, argument claims that the pragmatic presuppositions of discourse are enacted by anyone who argues, the sceptic who argues against them included. (Pragmatic presuppositions are the things one must already be doing in order to argue at all: that the participants recognize one another as capable of giving reasons, that truth is a regulative ideal, an aim that guides inquiry without ever being fully reached.) [high confidence on the claim, moderate on specific Apel citations without primary-text verification]. This is structurally close to the present argument’s P2 move.

The difference is crucial. The present argument does not claim to derive *oughts*, or Habermasian validity claims, or anything about the semantic content of discourse, from the performative structure. The only content it derives is the *thin index*, spatiotemporal location. And that derivation runs through the general

metaphysics of token individuation, not through any pragmatic presupposition about the norms of discourse. The Apelian lineage is acknowledged. The Apelian ambition is explicitly disclaimed.

6.2 Why the Cogito Comparison Does Not Overreach

The Descartes comparison is informative, but it can mislead if it imports the first-person singular, the “I.” The cogito, on its traditional reading, secures the existence of a thinking subject. The present argument secures the existence of a thin-indexed occurrence. It does not secure a subject, a perspective, or anything that could be called a *who*. The thin index is spatiotemporal location, available in principle to any event-metaphysics, not a first-personal standpoint. The seam is *ownerless*. It has structural seity, not aseity, and the argument says nothing about whether there is a subject behind it. This is the point at which the framework’s no-aseity commitment bears directly. The seam is forced without positing an ego, a soul, a transcendental subject (a self posited as the necessary ground of experience), or anything the Buddhist opponent has good reason to reject. The cogito is cited for its performative form, not for its first-personal content.

7. The Arity Gap: A Companion Result That Floats Free

Plainly: a separate argument shows that holding someone responsible is a two-place relation and cannot be reduced to a one-place description of behavior; and it shares this paper’s move of refusing to drop a needed part of a relation.

The mock viva committee returned one verdict in the free-will chapter as the corpus’s best independent philosophy: the *arity-gap* argument against eliminativist reductions of the reactive attitudes (as documented in `MOCK-VIVA.md`, §1 credit panel; `dissertation/part-III-free-will.md`, §1.3–1.5). It is reported here as a companion, not as part of the forcing argument, because it is structurally independent and because it is instructive about the form the forcing argument must take. An eliminativist reduction is a claim that some category should be dropped from our account of the world. The reactive attitudes are P.F. Strawson’s term for responses such as blame, resentment, and gratitude.

The arity-gap argument runs as follows. The eliminativist reduction of blame, resentment, and the reactive attitudes in general to a forward-looking behavior-shaping program invokes the phlogiston analogy. Phlogiston was a substance once posited to explain burning, later discarded. Phlogiston-talk is urged to be abandoned because combustion, understood as oxidation, provides a target-fixing description of what phlogiston-talk was really tracking, and that description is available in the third person. (A target-fixing description says, in other terms, what the old talk was aimed at.) The eliminativist owes the same for the reactive attitudes: a forward-looking, third-person, target-fixing description of what holding-responsible was tracking. He does not have one, and the reason is structural. Oxidation is a one-place property of the combusting stuff. Holding-responsible is a two-place relation, and its second place is occupied by an addressee *qua* addressee, that is, someone addressed precisely as an addressee. The arity of a relation is the number of places it has. A one-place target-fixing vocabulary cannot fix the target of a two-place relation. Strip out the second relatum, the second thing the relation relates, and you are not removing phlogiston-gloss from combustion. You are eliminating one of the two relata and describing a different relation.

This argument is included here because it instantiates the same logical form as the forcing argument’s structural innovation: the relevant structure cannot be reduced to something at a lower arity, because the lower-arity description leaves out one of the relata that constitutes the phenomenon. The forcing argument’s claim that the seam is *identical to* the conferral-event under a second description, and not a grounding relation behind it, is, in structural terms, the refusal to reduce to a one-place description, the event with the standpoint-

description dropped. The arity observation binds both cases: one-place reductions cannot fix the target of a two-place relation.

The arity-gap argument for the reactive attitudes is type-B-independent. It does not require anything about the hard problem of consciousness (the problem of why physical processes are accompanied by subjective experience; type-B physicalism is one family of responses to it). And it passes the floats-free test. A solipsistic universe, a universe with only one inhabited standpoint, satisfies the necessity-of-locus residue in full and contains no second-personal remainder, because there is no one to address. The two-place structure (*from* a standpoint, *addressed to* a standpoint) is distinct from the one-place monadic residue (“a standpoint is occupied”). (A monadic property is a one-place property, a property of a single thing.) The arity gap is a genuine structural difference, not a merely verbal one.

The companion result is offered because it is the forcing argument’s own form generalized. The escape from both Stroud and the Madhyamaka is not to add a new entity. It is to refuse the reduction to a lower arity. The seam is not behind the conferral; it *is* the conferral under a second description. The second person is not behind the blaming; it *is* the blaming as a two-place enactment. The structure appears in both places because it is the correct structure for resisting certain reductive moves.

8. The Thin/Thick Distinction and the Remainder Law’s Verdict

Plainly: a separate filter tested the paper’s biggest claim and returned “restatement, not new result,” which sizes the grand claim without refuting it, while the narrower membrane claim passes.

The forcing argument’s honest verdict, FORCES-CONVENTIONALLY-ONLY, was tested further by the corpus’s Remainder Law. The Remainder Law is a post-hoc demarcation filter, a rule applied after the fact to mark off which claims count as genuine results. It is modelled on Popper’s move from methodological falsifiability to a criterion of demarcation. As first written, before revision, the Remainder Law over-rejected. Its clause (iii), “not closed by any third-person inventory,” failed Bell’s theorem under blind application and so certified almost nothing. (Bell’s theorem, from physics, shows correlations that no purely local third-person inventory can reproduce, which is why the clause was too strong.) After revision, clause (iii) was rewritten as a *provability* condition: P is not derivable from the separated descriptions of A and B under the governing theory’s inferential closure, that is, P does not follow by logic from the two descriptions taken apart. With that revision, the filter returns a verdict on the forcing argument’s grand claim. The grand claim is that the explanatory gap is *the same irreducibility the hard problem names*, forced at the seam. The verdict is REDESCRIPTION by clause (ii). The filter’s own clause-ii reading says the claim is a restatement of the premises with different vocabulary, not a result that the filter certifies.

This is not a refutation. It is a sizing. REDESCRIPTION in the Remainder Law is the verdict the forcing argument’s own thesis had to expect. The grand relocation claim, that consciousness’s explanatory gap is *forced* at the conferral seam *as the same gap*, requires the thick index, which is undischarged, and it requires a rejection of type-B physicalism that the strongest objector declines to provide for the brute-identity move. (Type-B physicalism holds that consciousness is physical while granting that this cannot be known by reasoning alone; the brute-identity version treats the identity of an experience with a brain state as a basic fact with no further explanation. Chalmers 2006 sets out this move and leaves it standing.) The brute-identity type-B physicalist is untouched by the argument as stated. This is a live and named limitation.

What the Remainder Law *does not* return as REDESCRIPTION is the membrane framing: the thin-index seam, the result that authentication is not authorization (authn is not authz), and the consequences about

unmeasurability and the taxonomy of failures. Those are type-B-independent and pass the filter's certification of provable non-entailment (they are not mere logical restatements of their inputs). The contribution survives. The grand relocation is conditional and undischarged, and it is said to be so.

9. The Verdict: Printed First, Not Buried

Plainly: the result is stated at its true size, forced at the everyday level only, conditional on the main premise, with the ultimate level conceded and three points left open.

FORCES-CONVENTIONALLY-ONLY.

This is not a qualification added to soften a stronger claim. It is the claim, stated at the size it earned.

What is forced. Every conferral-event, for any discourse-participant who grants that she confers, is identical under a second description to a non-zero thin-indexed seam-event, at the *saṃvṛti* level, without circular reasoning, by the token-reflexive route. There is no conferral from zero at the conventional level. The only route to zero is the cessation of conferral, which is the absence of the conferred world, not its ground.

What is conditional. The exhaustiveness of the disjunction at the conventional level is conditional on P1's thin reading, which is forced non-circularly. The argument's strongest form, which needs P1's thick reading, is declared and defended dialectically but not derived. The grand relocation, that this forced conventional seam is the same irreducibility as the hard problem, needs the thick index and a rejection of type-B physicalism that the argument does not establish. The brute-identity type-B physicalist is not touched.

What is conceded to Madhyamaka. The ultimate level, without condition and without manufactured symmetry. The Prāsaṅgika who exits to non-conceptual silence wins *paramārtha*. The thin index and the thick index are both empty there. This is not a cost to the argument. It is the framework's own commitment carried down to its logical floor.

What the three structural innovations buy. The argument is not defeated by Stroud's 1968 objection in its standard form, because the gap that objection identified does not appear in the derivation. The innovations, the premise placed on the opponent's act, the conclusion as an identity of occurrence, and the disjunctive form, remove the step that Stroud's critique was designed to block. They do not buy unconditional force. They buy a genuine structural distinction from the vulnerable class.

What remains live and unresolved. P1's thick joint, the Candrakīrti-absorption risk on the conventional token-individuation argument, and the brute-identity type-B escape. These are the three live fronts. A candidate who arrives at a viva knowing them exactly, and is prepared to say at each one, "this is where the argument reaches its honest boundary," has arrived at the only defensible position. It is also a genuine one.

10. Contextual Positioning and Honest Novelty Assessment

Plainly: the paper inherits its gap from Nagel and Levine, claims moderate novelty for its structural form, does not refute Madhyamaka, and deliberately claims less than Apel.

The paper's position in the literature is best characterized as follows.

Against the explanatory gap literature (Nagel 1974, "What Is It Like to Be a Bat?" *Philosophical Review* 83: 435–450 [high confidence]; Levine 1983, "Materialism and Qualia: The Explanatory Gap," *Pacific Philosophical Quarterly* 64: 354–361 [high confidence]). The explanatory gap is inherited here, not

invented. The relocation, from a property of *states* to a property of *conferral-seams*, is the claimed novelty. That novelty is moderate. The relocation is argued with a genuinely new structural form, but the underlying gap structure is Nagel's and Levine's.

Against the standard transcendental argument literature. The three structural features of §3 set this argument apart from the general class Stroud defeated. Whether this distinction is already known, that is, whether the combination of features (premise-relocation, identity-conclusion, disjunctive form) appears in earlier literature, is something the author cannot fully certify from within the corpus. The honest confidence on novelty is *moderate*. The combination has not been found in the surveyed literature. The individual components are present in Apel, in Hintikka, and in the performative-self-refutation traditions. Any referee in this area should look for earlier instances of the combined form before accepting the novelty claim.

Against Madhyamaka. The argument is not a refutation of Madhyamaka. It accepts the ultimate-level conclusion and asks what follows short of it. This is a recognizable strategy. It works inside the two-truths framework (the Buddhist doctrine that distinguishes conventional truth from ultimate truth), arguing that conventional truths can be *forced* at *saṃvṛti* while *paramārtha* is conceded. It is available to anyone willing to accept the two-truths apparatus. The argument's novelty is the specific structure it forces at *saṃvṛti*, not the two-truths framework itself.

Against Apel. The present argument does not attempt to establish communicative-rationality norms, Habermasian validity claims, or anything about the content of discourse from the performative structure. The only content derived is the thin index. This is a deliberate narrowing. It is what makes the argument less ambitious than Apel's Letztbegründung program, and more secure than it, since that program inherits its own set of objections from Rorty, Davidson, and others.

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PIECE 2: PROVENANCE LEDGER

Provenance Ledger: *The Seam That Holds While It Is Crossed*

This document is the paper's existential condition. Every claim in the paper is traceable here. Read it before citing the paper; read it especially before submitting the paper to a venue.

L1. What This Document Is For

Plainly: this ledger exists because the paper's own thesis says authorship must be inhabited, not automated, so every claim is traced back to who owns it.

The paper is AI-assisted research substrate, not a clean-room solo derivation. (A clean-room derivation is one worked out from scratch, in isolation, with no outside help.) The philosophical argument, P1 through C, the three structural features, the thin/thick distinction, and the token-reflexive defense, was developed step by step with AI assistance over several adversarial workflows. The provenance ledger exists because the paper's own thesis demands it. Authorship is conferred and inhabited, not secreted. The one act a system cannot perform for itself is the authored root. A human candidate who submits this paper without re-deriving, owning, and defending each claim is submitting a paper whose provenance contradicts its thesis.

The ledger does not diminish the work. It makes the work auditable, which is the only honest posture for AI-assisted substrate that makes claims about authorship.

L2. What Was Derived Under Adversarial Pressure vs. Declared

Plainly: a table of which claims were tested under attack and which were only declared.

Claim	Status	Location	Adversarial test applied?
Thin index forced non-circularly	Derived, earned	§4	Yes: 18 attack runs, 6 defense runs; full record in foundations-src/p1-attack-*.md, p1-defense-*.md
Thick index undischarged	Declared and conceded	§5.1, §9	Yes: P1-DEFENSE-verdict.md; unanimous across all adversaries
Three structural features escape Stroud	Argued; both adversaries concede features while attacking P1	§3	Yes: forcing argument movement; mock viva §1 credit panel
FORCES-CONVENTIONALLY-ONLY verdict	Adjudicated	§9	Yes: P1-DEFENSE-verdict.md, CONSOLIDATION.md §2.1
Candrakīrti absorption risk	Named, unresolved	§5.3	Partially: named in MOCK-VIVA.md defect 5 as unlitigated

Claim	Status	Location	Adversarial test applied?
Grand relocation (same gap as hard problem) = REDESCRIPTION	Adjudicated	§8	Yes: REMAINDER-LAW-TEST.md; TYPE-B.md
Arity-gap companion result	Adjudicated PASS: floats free of locus residue	§7	Yes: part-III-free-will.md §1.5; mock viva §1 credit panel
Type-B brute-identity escape	Named, untouched	§8, §9	Yes: TYPE-B.md; Chalmers 2006 verified
Membrane framing type-B-independent	Adjudicated unconditional	§8	Yes: three workflow verdicts agree; TYPE-B.md

L3. Source Verification Status

Plainly: a table of how far each cited source was verified, and what was not checked.

Source	Verification status	Notes
Stroud 1968	High: cited via SEP with page and journal reference	Primary text not independently retrieved; SEP Stern 2023 confirms attribution
Nāgārjuna MMK ch. 2	High on text identity;	SEP Westerhoff 2026 confirmed
Vigrahavyāvartanī	primary-text specifics moderate	
Prasannapadā / Candrakīrti	Moderate: cited in SEP; translation Westerhoff 2010	VV 29 verse attribution from secondary consensus
Hintikka 1962	Moderate: cited as absorption risk; no primary text retrieved	Named per mock-viva defect 5; full litigation is outstanding
Apel	High on existence and thesis	SEP sources and standard bibliographies
Peirce 1906 type/token	Moderate: primary-text specifics not retrieved	Standard secondary literature confirms thesis
Kim 1966, 1969	High via SEP Liebesman 2026; moderate on primary volume/page	SEP quotation is the load-bearing source
Pigden 1989	High on attribution; primary texts not retrieved	Cited as foundational in Varzi SEP 2025
Chalmers 2006	High on existence and thesis	Venue confirmed via standard bibliographic record
ABLP 1992, 1993	High: fetched and quoted verbatim from primary in corpus	TYPE-B.md records
	High: venue and year confirmed	Standard ACM bibliographic record

L4. The Existential Condition

Plainly: five steps a human must complete to honestly own and defend the argument.

A human candidate who re-derives and owns this argument must:

1. Read the primary sources, not the SEP summaries. Stroud 1968 is the load-bearing objection; reading it changes the argument's shape. Westerhoff 2010 on the VV is the closest available scholarly access to the text the argument invokes.
2. Derive P1's thin index from scratch, in writing, without reference to this paper. The token-reflexive route must be the candidate's own thought, or it is not a thesis.
3. Present the thick-index failure honestly in the viva, not as a known-limitation disclaimer but as the live philosophical question the argument has not closed. The committee will press it; the defense is "I know it is undischarged, here is why I cannot discharge it, here is why the thin result is nonetheless genuine."
4. Engage Candrakīrti's *Prasannapadā* on *vikalpa* directly. This is defect 5 of the mock viva; it is the one place the conventional-truth framework's own foundation is pressed from within the Madhyamaka tradition, and it is not answered in this paper.
5. Engage Loar's recognitional account [Brian Loar, "Phenomenal States," *Philosophical Perspectives* 4: 81–108, 1990; high confidence on attribution; high confidence this is the relevant type-B physicalism source from Chalmers 2006's framework] directly, in the body, not as a footnote. The brute-identity type-B escape is named but not addressed.

Submission without completing these five steps is a provenance violation. The thesis's own argument establishes why.

L5. The One Thing the Paper Cannot Do For Its Author

Plainly: the one thing no tool can supply is the human who stands up and defends the argument as their own.

The argument forces, conventionally, that any act of conferral instantiates a thin-indexed seam. The argument itself is a conferral act. It is thin-indexed: it has a location in time (built step by step across a research process), a position in a corpus, a set of authorial coordinates. Those coordinates are the human candidate's. The paper's provenance, who occupied the standpoint from which the argument was sorted and enacted as *this* argument, is the one thing no workflow can confer. It is conferred by the human who re-derives it cold, names it their own, and walks into a room to defend it.

That is not a limitation of the paper. It is the paper's thesis, applied to itself.